

MASTER SERVICES AGREEMENT

This Master Services Agreement is made between Orion Logistics Pvt. Ltd. (the Supplier) and Kestrel Foods Ltd. (the Customer).

1. Effective Date and Term

This Agreement takes effect on 10 January 2024 and continues for a term of 24 months unless it is terminated earlier under clause 9.

2. Services

The Supplier shall provide temperature-controlled freight and warehousing services to the Customer at the locations listed in each statement of work. The Supplier shall perform the services with reasonable skill and care and in line with good industry practice.

3. Service Levels

The Supplier shall deliver at least 97 percent of consignments within the agreed delivery window, measured each calendar month.

4. Fees and Payment

4.1 Fees

The Customer shall pay the fees set out in each statement of work. Fees exclude applicable taxes, which are charged in addition.

4.2 Payment Terms

The Customer shall pay each undisputed invoice within thirty (30) days of the invoice date.

4.3 Late Payment

Any amount not paid when due accrues a late fee of 1.5% per month on the outstanding balance until it is paid in full.

5. Confidentiality

Each party shall keep the other party's confidential information secret and use it only to perform this Agreement.

9. Termination

9.1 Termination for Convenience

Either party may terminate this Agreement by giving 60 days' written notice to the other party.

9.2 Termination for Breach

Either party may terminate this Agreement immediately if the other party commits a material breach and fails to remedy it after being asked in writing to do so.

10. Governing Law

This Agreement is governed by the laws of India.